

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

August 11, 2008

The Governing Body of the City of Cheyenne met in regular session on this date at 6:00 p.m. in Council Chambers. Present were: MAYOR-Jack R. Spiker; COUNCIL MEMBERS-Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Laybourn, Mr. Pierson, Dr. Rinne, Mr. Segrave and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Claudia Angelos, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests, in which event the item will be removed from the Consent Agenda and considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, Mayor Spiker announced agenda items #21, 23, 24, 34(a), 35(a), 36(a), 37(a) and 38(a) would be removed from the Consent Agenda. Comment was made pertaining to removal of Consent Agenda items. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Pierson. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no".

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON JULY 28, 2008. Motion (per consent agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON AUGUST 4, 2008. Motion (per consent agenda) carried.

Mr. Segrave moved to approve payment of vouchers as presented, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

Mayor Spiker opened a public hearing for the purpose of receiving comments and input to determine whether compliance of annexation conditions required by Wyo. Stat. § 15-1-402 exists for the property described as being situated in a portion of Section 1, 12, and 17, T.13N., R.67W. of the 6th P.M., Laramie County, WY (located S. of I-80 and predominantly E. of Southwest Dr.). Brandon Cammarata, Urban Planning office, reviewed requirements and compliance of conditions contained in Wyo. Stat. § 15-1-402, including specific information indicating compliance with Wyo. Stat. § 15-1-402(a)(i) through (vi). The following individuals expressed concerns with the proposed annexation: Leo Garcia, John Fafoutakis, Glenn Connor, Francis Shive, Ruby Tomlinson and Brenda Rath. Topics discussed included: Public safety and train/vehicular volume concerns with the railroad crossing at Southwest Drive off West Lincolnway; area traffic congestion and delays, including effect on emergency responders; problems encountered with alternate traffic routes due to impassable times at the crossing; suggestion of installing an overpass or underpass (tunnel) at the crossing; verbal and written safety and traffic concerns received from railroad representatives and

former City staff; statistics on train volumes and injuries/deaths occurring at railroad crossings; proposed housing development plans for the property and effect on residents in the vicinity relative to traffic and safety; uses of property in the area (i.e. petroleum storage, pipeline); traffic study; increased traffic due to other nearby developments, and drainage concerns. During comments, various speakers submitted written information (on file with office of City Clerk) to governing body members in support of their statements. Gay Woodhouse, attorney representing landowners in the surrounding area of the proposed property to be annexed, submitted a written petition of protest signed by landowners, and spoke in opposition to annexation of the property. She reviewed state statute annexation provisions and requirements outlined in Wyo. Stat. §15-1-402, and discussed traffic in the area, including the effect of semi-truck “backups” from I-25 affecting College Dr. traffic; health, safety and welfare concerns; creation of a new county pocket if annexation were approved; water and sewer services; property contiguity; existing neighborhood lifestyle, and potential future financial effect of annexation on nearby residents relative to repair/replacement of septic systems. Upon inquiry regarding property use if the proposed housing development did not occur, Ken Clark, Garrett Properties, LLC, one of the landowners of the property proposed to be annexed, responded that he has been approached by other interested parties inquiring about use of the property for other potential projects other than a housing development. Upon inquiry, Mr. Cammarata reviewed the current location of the Cheyenne Animal Shelter (CAS) facility and confirmed the entity was a participant in the request for annexation, and provided property zoning classification information for the proposed annexation site. Pursuant to inquiry concerning the new CAS site/building, City Treasurer Barb Dorr stated the City does not hold the mortgage for the CAS property. There being no further comments or input and purpose of the hearing having been met, Mayor Spiker closed the hearing.

“AN ORDINANCE AMENDING SECTION 2.04.160(D)(6), READINGS-COMMITTEE REPORTS-AMENDMENTS, OF CHAPTER 2.04, MAYOR AND CITY COUNCIL, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.” Reporting for Finance Committee, Mr. Segrave moved to approve on third and final reading, seconded by Mr. Valdez. Comments included the following topics: Monitoring of expenditures; accountability and fiscal responsibility; City Council oversight in reviewing purchases; effects of inflation on project costs and purchases; ordinance sponsor relative to the ordinance subject; City Council departmental budget approval; 2008 state legislative action increasing the threshold amount (from \$20,000.00 to \$35,000.00) required for advertising of bids, and Wyoming Association of Municipalities’ support for the state change. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Case, Mr. Laybourn and Dr. Rinne voting “no”. (#3818)

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS A TRACT OF LAND SITUATED IN A PORTION OF THE NW¼ OF SECTION 8, AND A PORTION OF WALTERSCHEID BOULEVARD SITUATED IN A PORTION OF THE NE¼ OF SECTION 7 AND A PORTION OF THE NW¼ OF SECTION 8, T.13N., R.66W. OF THE 6TH P.M. AND A PORTION OF WEST JEFFERSON ROAD LYING BETWEEN THE WESTERLY RIGHT-OF-WAY LINE OF THE SOUTH GREELEY HIGHWAY AND THE WEST LINE OF TRACT 16 ALLISON TRACTS, LARAMIE COUNTY, WY (LOCATED S. OF AND ADJACENT TO FOX FARM RD. AND E. OF AND ADJACENT TO WALTERSCHEID BLVD.).” R.C. Reiman, with Gateway South, requested the ordinance be

continued for 30 days. Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Dr. Rinne. Mr. Collins moved to postpone for 30 days (to Sept. 8, 2008), seconded by Mr. Brown. Mr. Reiman advised a postponement would allow for further discussion on preliminary plat issues with City staff. Upon inquiry, Martin Matsen, Development Director, advised there are engineering issues they are attempting to resolve on the preliminary plat and suggested the plat could be approved concurrently with annexation action or after the ordinance was approved. Mr. Matsen provided information on the area involving engineering and right-of-way issues and effect of topography in the area, and Mr. Reiman spoke on right-of-way concerns and current dirt (fill) work. Mr. Reiman clarified he had written documentation from the South Side Water and Sewer District office stating the District will provide services to the property. Comments followed on South Side Water and Sewer District's policies involving acceptance or denial of properties to receive services. Upon inquiry, Mr. Matsen stated the postponement will allow staff more time to work with the developer. Motion to postpone for 30 days carried. Voting "yes" – all members of the governing body.

Following a 10 minute recess, Mayor Spiker reconvened the meeting at 7:30 p.m.

"AN ORDINANCE AMENDING TITLE 5, BUSINESS LICENSES AND REGULATIONS, CHAPTER 5.12, ALCOHOLIC BEVERAGES, SECTION 5.12.090 (B), MINORS-DISPENSING ROOM RESTRICTIONS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING, CONCERNING MINORS EMPLOYED IN A RESTAURANT AND FULL SERVICE RESTAURANT ENVIRONMENT." The following individuals, affiliated with City retail and bar and grill type liquor licenses, spoke in favor of the ordinance: Mylon Skala, Applebees; Rachael Svobode and John Johnson, Old Chicago; Thomas Rudolph and James Yates, Sanfords Grub and Pub, and Jay Hutchinson, Olive Garden. Topics discussed by the speakers included: Management, workforce/staffing levels and operational issues regarding employees in their respective businesses, which involve the sale of food as the primary purpose of business, who are 18, 19 and 20 years of age and their inability, under City Code, to enter the dispensing room to serve as host/hostesses (seating guests) or to deliver food/drinks to dining patrons; current state statutes and City Code, which allows those employees who are at least 18 years of age (in a restaurant environment) to serve alcohol to all other dining areas of the restaurant, except the dispensing room, through walk-up area access; clarification that the definition of "serving" does not include mixing and pouring drinks (bartending); importance of being able to utilize persons ages 18-21 as a labor source, and labor pool shortage issues affecting customer service levels. Lynn Birleffi, Wyoming Lodging and Restaurant Assoc., spoke in support of the ordinance, stating this is an important issue to many local restaurant businesses. She discussed workforce/labor shortage problems; that employees entering a dispensing room would do so only during employment hours for work purposes; that employees must follow liquor licensees' employment policies to ensure continued employment, and that other communities allow this in a variety of different spectrums since it is allowed by state statutes. Ms. Birleffi submitted written "Talking Points" in support of her statements (on file with office of City Clerk). Alfreda Gonzales, Exec. Dir., Laramie County Community Partnership, advised the Partnership is working on the issue of underage drinking and that results of a survey on relevant policy research reflected a lack of sufficient or cohesive community policies to help reduce underage access to alcohol. She explained the Partnership's strategic plan on this topic and efforts to forward the issue to state legislators; advised of a forthcoming report to be released later this year; provided statistical information relative to research involving underage drinking, and encouraged the governing body

to not move forward with the ordinance at this time. Bryan Grzegorzczuk spoke in favor of the ordinance, stating employed individuals are not going to work to drink, but to work. Mr. Yates expressed his belief that the proposed ordinance change was a workforce problem, not an underage drinking issue, and commented on liquor licensees' financial investments in their respective businesses. Mr. Collins moved to approve on second reading, seconded by Mr. Brown. Upon inquiry, Tom Montoya, Chief Enforcement Officer, Wyoming Liquor Division, provided a brief history involving the adoption of the 2007 state legislative bill, explaining the bill was originated based upon a decreasing labor force in certain areas of the state due to effects of the energy boom. He indicated the proposed ordinance will affect liquor licensees operating in a restaurant and full-service restaurant environment only, and will not apply to bars (i.e. Licensee operations not meeting the state definition of restaurant and full service restaurants). In addition, he stated it will not allow 18, 19 and 20 year olds to serve as bartenders, and reported that, state-wide, Liquor Division enforcement agents have reported no problems with 18-20 yr. old employees serving. Extensive discussion followed and included the following subjects: Amending municipal code to be in line with state statutes; workforce labor shortages; suggestion of requesting state legislators to change the definition of dispensing room; raising wages to attract employees; current state-wide "Where Do We Draw The Line" program; access to alcohol and underage drinking issues; exposure of alcohol to those under 21 years of age by allowing them to serve in dispensing rooms; food and alcohol service areas; current employee services within vs. outside of a dispensing room; bartender and server TIPS training requirements and Police underage compliance checks; zero underage access/drinking tolerance policy; liquor licensees' responsibilities involving underage individuals, and other City ordinances approved to assist with alcohol monitoring and control. Upon inquiry during comments, City Clerk Carol Intlekofer clarified the governing body reviews annual liquor licenses (renewal applications) after the first of each year before the renewal term begins, which is April 1st. Upon inquiry, Ms. Svobode clarified individuals serving alcohol to customers in restaurants are responsible for checking IDs, and Police Chief Bob Fecht advised underage alcohol compliance checks are conducted through the Police Dept. as well as review of employee TIPS training records. He stated throughout the past year no TIPS violations have been found at any of the facilities. During discussion and upon request by Chief Fecht, the Chief, with assistance by Mr. Skala, presented a "what if" scenario reflecting the difference between wait staff serving food and alcohol "inside" vs. "outside" a dispensing room. Further discussion followed on fines for underage serving and licensee/managerial responsibility for compliance with state and local laws. Motion carried. Voting "yes" – all members of the governing body with the exception of Ms. Broyles, Mr. Pierson and Mr. Valdez voting "no". Under other City business, Amber Ash spoke in favor of the ordinance; suggested Council review what other states are allowing; cited her former personal employment experience relative to the ordinance topic, and expressed her belief that it is the bartenders' role to oversee a dispensing room area, which is more closely monitored than other areas of a restaurant environment.

"AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PUBLIC ROAD AND ALLEY RIGHT OF WAY SITUATED IN THE NW¼ OF SECTION 27, T.14N., R.66W. LARAMIE COUNTY, WYOMING (LOCATED NORTH OF PERSHING BOULEVARD, SOUTH OF DELL RANGE BOULEVARD AND EAST OF GROVE DRIVE AND WEST OF COLLEGE DRIVE)" – referred to Public Services Committee (sponsor - Mr. Collins).

"AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A

PARCEL OF LAND DESCRIBED AS LOT 16, BLOCK 1, DOWNEY ADDITION, LARAMIE COUNTY, WYOMING (AKA 3324 LAND COURT)” – referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS THE NORTHERLY PORTION OF LOT 1, BLOCK 1 INCLUSIVE OF THE 16 FOOT UTILITY EASEMENT, ROGERS SUBDIVISION AND LOTS 3 THROUGH 5 AND THE NORTHERLY HALF OF ADJACENT VACATED ALLEY, BLOCK 2, COULSON ADDITION, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF AND ADJACENT TO MESSENGER COURT, WEST OF MCCANN AVENUE)” – referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS THE WEST 60-FEET OF THE EAST 120-FEET OF TRACT 336, SUNNYSIDE ADDITION, SEVENTH FILING, LARAMIE COUNTY, WYOMING (AKA 3616 AND 3618 RAWLINS STREET)” – referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE VACATING MCCOMB AVENUE BETWEEN W. LINCOLNWAY AND W. 17TH STREET AND THE 16-FOOT ALLEY WITHIN BLOCK 401, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED BETWEEN MISSILE DRIVE AND MCCOMB AVENUE AND BETWEEN W. LINCOLNWAY AND W. 17TH STREET)” – referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LI LIGHT INDUSTRIAL AND MUB MIXED USE WITH BUSINESS EMPHASIS DISTRICTS TO P PUBLIC DISTRICT FOR A REPLAT OF BLOCK 1, LOT 1, KIWANIS ADDITION; A PORTION OF 11TH STREET, ORIGINAL CITY; THE HOLMQUIST ADDITION BEING A PORTION OF BLOCKS 512 AND 513, ORIGINAL CITY INCLUDING A PORTION OF VACATED 10TH STREET AND AMES AVENUE; A PORTION OF BLOCKS 2, 3, 4, 8 AND 9, AND ALL OF BLOCKS 5, 6 AND 7, INTERIOR HEIGHTS SUBDIVISION, THOSE PARCELS DESCRIBED IN WARRANTY DEEDS BOOK 1841 AT PAGE 889 AND BOOK 1841 AT PAGE 938, AND A PORTION OF THE S½ OF SECTION 6, T.14N., R.66W., 6TH P.M., CHEYENNE, WYOMING TO BE KNOWN AS DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK (LOCATED SOUTH AND EAST OF AND ADJACENT TO PARSLEY BOULEVARD, WEST OF DILLON AVENUE)” – referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM HR-2 HIGH-DENSITY RESIDENTIAL-DEVELOPING DISTRICT AND MR-1 MEDIUM-DENSITY RESIDENTIAL-ESTABLISHED DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR A PORTION OF SOUTH PARK ESTATES, 2ND FILING AND INTERIOR HEIGHTS, STANFIELD 3RD ADDITION AND PORTIONS OF BLOCKS 713-714, 754-756 AND 775-777, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED NORTH OF I-80, BETWEEN

WALTERSCHEID BOULEVARD AND PARTOYAN DRIVE AND SOUTH OF W. 5TH STREET)” – referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM MR-1 MEDIUM-DENSITY RESIDENTIAL-ESTABLISHED DISTRICT TO MUB MIXED USE WITH BUSINESS EMPHASIS DISTRICT FOR THE NORTH 106-FEET OF LOT 8, AND ALL OF LOTS 9 AND 10, BLOCK 8, A CORRECTED REPLAT OF LOGAN HEIGHTS, CHEYENNE, WYOMING (LOCATED EAST OF LOGAN AVENUE BETWEEN E. 19TH STREET AND CHEYENNE PLACE)” – referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LR-1 LOW-DENSITY RESIDENTIAL-ESTABLISHED DISTRICT TO MUR MIXED USE WITH RESIDENTIAL EMPHASIS DISTRICT FOR THE EAST 65-FEET OF LOT 14, BLOCK 3, YELLOWSTONE ADDITION, CHEYENNE, WYOMING (LOCATED NORTH OF AND ADJACENT TO DELL RANGE BOULEVARD, EAST OF YELLOWSTONE ROAD” – referred to Public Services Committee (sponsor - Mr. Collins).

“A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE STATE LOAN AND INVESTMENT BOARD FOR A GRANT FROM THE TRANSPORTATION ENTERPRISE FUND ON BEHALF OF THE GOVERNING BODY OF THE CITY OF CHEYENNE/CHEYENNE TRANSIT PROGRAM, FOR THE PURPOSE OF PURCHASING TWO 22 PASSENGER REPLACEMENT BUSES.” Mr. Segrave moved to adopt, seconded by Mr. Brown. Upon inquiry, Joe Dougherty, Transit Director, clarified the buses will be the newer white and green buses, with a hood, at an approximate cost of \$80,000 each. Motion carried. Voting “yes” – all members of the governing body. (#5058)

RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS THE WEST ½ OF TRACT 10, AIRPORT VALLEY TRACTS, LARAMIE COUNTY, WY (AKA 5905 CROW ROAD).” Mr. Collins moved to adopt, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body. (#5059)

“A RESOLUTION APPROVING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING WATER DEVELOPMENT COMMISSION FOR FUNDING FOR THE BELVOIR PALEOZOIC LEVEL II GROUNDWATER EXPLORATION PROJECT AND AUTHORIZING THE BOARD DIRECTOR TO SIGN THE APPLICATION AND TO EXECUTE ALL RELATED DOCUMENTS.” Mr. Segrave moved to adopt, seconded by Mr. Brown. Upon inquiry, Tim Wilson, Director, Board of Public Utilities (BOPU), provided information on Level I and Level II project differences, status of the project, amount of funding request (100%) that can be approved by the Water Development Commission for program qualifying projects of this type, and purpose of the funding application (further exploration). Motion carried. Voting “yes” – all members of the governing body. (#5060)

“A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE

WYOMING STATE LOAN AND INVESTMENT BOARD FOR A LOAN FROM THE STATE REVOLVING FUND FOR THE PURPOSE OF FUNDING THE REPLACEMENT OR CLEANING AND LINING OF THE 30 INCH WATER TRANSMISSION MAIN (ROUNDTOP TO I-25) AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS.” Mr. Segrave moved to adopt in an amount not to exceed \$6.68 million, seconded by Mr. Brown. Upon inquiry, Tim Wilson, BOPU Director, provided information on the estimated total debt of BOPU’s water and sewer enterprise funds, and age of the water line. Comments followed concerning the amount of BOPU’s debt, costs of managing the water system and effect on users, types of BOPU loans, current water levels in reservoirs relative to drought status, and investment in water and reusable water systems and programs. During comments and upon request, Mr. Wilson provided engineers’ cost estimates on preliminary design for construction costs for BOPU’s new administration/engineering building, and explained BOPU’s debt loan term and interest rates vary with the different types of loans. Motion carried. Voting “yes” – all members of the governing body. (#5061)

“A RESOLUTION APPROVING THE SUBMISSION OF AN APPLICATION TO THE WYOMING WATER DEVELOPMENT COMMISSION FOR A GROUNDWATER EXPLORATION GRANT FOR A CHEYENNE MUNICIPAL WELLFIELD - MANAGED AQUIFER RECHARGE, STORAGE AND RECOVERY PROJECT AND AUTHORIZING THE BOARD DIRECTOR TO SIGN THE APPLICATION.” Mr. Segrave moved to adopt, seconded by Mr. Brown. Mr. Segrave moved to amend by substitute, which clarifies the dollar amount is not to exceed \$400,000.00, seconded by Mr. Brown. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Upon inquiry, Tim Wilson, BOPU Director, provided a summary of the project and past exploration studies within the City, and Bud Spillman, Water Treatment Manager, advised Bell wellfield water level is declining and provided information on wellfields’ yield levels. Comments were made regarding the importance of monitoring and maintaining the Bell wellfield. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. (#5062)

“A RESOLUTION AUTHORIZING THE MAYOR AND CITY CLERK TO EXECUTE A PURCHASE AGREEMENT TO ACQUIRE REAL PROPERTY AT 4500 DELL RANGE BLVD. (SLIB & GENERAL FUND RESERVES).” Mr. Segrave moved to adopt, seconded by Mr. Brown. Mr. Segrave moved to amend by substitute, which clarifies funding sources for the purchase, seconded by Mr. Brown. Rick Parish, Parks and Recreation Director, advised the substitute, in addition to clarifying dollar amounts and funding sources as requested at Finance Committee, also contains minor wording changes. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Upon inquiry, Mr. Parish provided information on the design-build contract previously approved for the design and construction of a new Parks maintenance building at Dutcher Field; explained costs affiliated with the new building, infrastructure and site improvements (approximately \$1.2 million), and reviewed funding sources and aspects of and amounts expended toward the design-build contract. He stated the Parks shop was being displaced due to the new Children’s Discovery Garden to be built at Botanic Gardens and that during the course of seeking a temporary facility to lease until the new building could be constructed, the Dell Range property was brought to his attention. He stated the Dell Range property consists of a

building (14,000 sq. ft.) that is larger than the one proposed to be constructed (7,000 sq. ft.) and includes 2.9 acres of land, providing for additional future expansion, for a purchase price of \$1,000,000.00. He noted positive characteristics of the site (i.e. ready access to major roadways, room for equipment storage, opportunity for growth and enhancements at the site). Discussion followed and included the following topics: Time frame affiliated with new construction and locating a temporary site for the maintenance shop vs. decision process to instead propose purchasing a facility; original placement of a new facility at Dutcher Field as developed during preliminary plans; costs affiliated with the design-build contract that the City must pay under the contract; benefits of the Dell Range property, including space for growth; cost comparison of purchasing the property vs. constructing a new facility; concern with proposed change of constructing a facility to purchasing an existing property, and communication with City Council members by staff on the proposal to purchase. Mr. Parish reviewed the expenses that would be involved in construction of a new facility at Dutcher Field and noted that the property has depreciated value (which would include the new building if constructed) as Land and Water Conservation grant funds have been received in the past, making the property unable to be readily disposed of (sold) if desired by the City in the future. Brad Carnahan, Director of Parks, confirmed the architect's original estimate to construct the new building was in excess of \$900,000.00. Further discussion followed in support as well as non-support of purchasing the property vs. constructing a new facility; benefits of a "single move" for Parks involving gas tanks, equipment and staff; potential site amenities that could be developed at the Dell Range property and amount of inside and outside storage space available, and administrative management issues. Main motion as amended by substitute carried. Voting "yes" – all members of the governing body with the exception of Ms. Case and Mr. Laybourn voting "no". (#5063)

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF WINDMILL ROAD, FIRST FILING, BEING A PORTION OF SECTION 28, T.14N., R.66W., 6TH P.M., CHEYENNE, WYOMING (WINDMILL ROAD LOCATED BETWEEN DELL RANGE AND E. PERSHING BOULEVARDS AND THE SOUTH HALF OF DELL RANGE BOULEVARD BETWEEN GRANDVIEW AND HILLTOP AVENUES" – referred to Public Services Committee (sponsor - Mr. Collins).

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF COLLEGE BUSINESS PARK REFINEMENT E, A REPLAT OF LOTS 7 THRU 12, BLOCK ONE, COLLEGE BUSINESS PARK, CHEYENNE, WYOMING (LOCATED AT THE NORTHWEST CORNER OF THE INTERSECTION OF LARAMIE ST. AND MONROE AVE.)" – referred to Public Services Committee (sponsor - Mr. Collins).

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF SOUTH PARK ESTATES, 3RD FILING, A REPLAT OF LOTS 58 AND 59, BLOCK ONE, SOUTH PARK ESTATES, SECOND FILING, CHEYENNE, WYOMING (LOCATED AT THE SOUTHWEST CORNER OF THE INTERSECTION OF PARTOYAN DRIVE AND SECOND STREET)" – referred to Public Services Committee (sponsor - Mr. Collins).

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF SOUTH PARK ESTATES, 5TH FILING, A REPLAT OF LOT 45 AND A

PORTION OF LOT 44, BLOCK ONE, SOUTH PARK ESTATES, SECOND FILING, CHEYENNE, WYOMING (LOCATED SOUTH OF AND ADJACENT TO W. SECOND STREET, WITHIN THE CUL-DE-SAC)” – referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION APPROVING THE SUBMITTAL OF A REQUEST TO THE WYOMING STATE LOAN AND INVESTMENT BOARD TO AMEND CWSRF LOAN #081 IN THE AMOUNT OF \$400,000 FOR EXTENSIONS TO CHEYENNE’S RECYCLE WATER SYSTEM AND AUTHORIZING THE MAYOR, CITY CLERK AND BOARD DIRECTOR TO SIGN ALL RELATED DOCUMENTS REQUIRED” – referred to Finance Committee (sponsor - Mr. Valdez).

[CA] “A RESOLUTION AUTHORIZING THE SUBMISSION OF A BUSINESS READY COMMUNITIES GRANT APPLICATION TO THE WYOMING BUSINESS COUNCIL ON BEHALF OF THE GOVERNING BODY OF THE CITY OF CHEYENNE FOR THE CONTINUED DEVELOPMENT OF THE DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK” – referred to Finance Committee (sponsor - Mr. Valdez).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

[CA] City Preliminary Plat for Sundance Ridge II, a replat of Tracts 2 and 3, Skyline Tracts, Cheyenne, Wyoming (located between Storey Boulevard and Skyline Drive, on both sides of Sycamore Road) – referred to Public Services Committee.

[CA] City Preliminary Plat for Gateway South, a replat of a portion of Tract 1, Allison Tracts and in the NW1/4 of Section 8, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming (located at the southeast corner of the intersection of Walterscheid Boulevard and W. Fox Farm Road) – referred to Public Services Committee.

[CA] City Preliminary Plat for BOPU Subdivision, a replat of portions of Blocks 98, 99, 149, 150, 151 and vacated streets and alleyway, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of Snyder and W. 24th Street) – referred to Public Services Committee.

[CA] City Preliminary Plat for Deming Drive and Walterscheid Boulevard, being portions of Sections 5 and 6, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming (located south of the Ames underpass and north of west Fox Farm Road) – referred to Public Services Committee.

LEASES/CONTRACTS/LEGAL:

Maintenance Agreement between the City of Cheyenne and the Wyoming Department of Transportation for the installation and maintenance of enhancements for the Randall Avenue Interchange Project (2003-2006 1% Sales Tax). Mr. Segrave moved to approve in an amount not to exceed \$57,599.00, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body. (#5290)

[CA] Development Agreement between the City of Cheyenne and the Church of St. Mary for the cooperative construction of street improvements at the intersection of 22nd Street and O'Neil Avenue in conjunction with the site development work at 2200 O'Neil Avenue (2003-2006 1% Sales Tax) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Wyoming Department of Transportation for the Safe Routes to School (SRTS) Program FY 2008 - Cheyenne Safe Routes to School Planning Award – referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Amendment No. 3 to Contract No. 3516 between the City of Cheyenne and the Wyoming Association of Risk Management Property Insurance Joint Powers Board for an Amended and Restated Joint Powers Agreement. Mr. Segrave moved to approve, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body. (#3516)

[CA] Contract Modification No. 1 to Contract No. 5065 between the City of Cheyenne and Ameri-Tech HVAC Services, Inc. to add the Taco John's Events Center to the Maintenance of Mechanical Equipment & HVAC Systems Contract – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #5204 between the City of Cheyenne and J-2 Contracting Co. for Contractual Services - Law and Liberty Plaza – referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #R-4-09 for furnishing 646 1½ cubic yard refuse containers from Ameri-Tech Equipment Co., Casper WY, for the Sanitation Dept. Mr. Segrave moved to accept the bid of Ameri-Tech Equipment Co., Casper, in an amount not to exceed \$245,480.00, seconded by Mr. Brown. Upon inquiry pursuant to a letter that had been received from another bidder, Rudy Apodaca, Director of Purchasing, advised state statutes were followed in determining the proposed successful bidder, clarifying that Ameri-Tech Equipment has been a long standing dealer for Teem, and qualifies as a resident bidder, therefore, the 5% in-state preference was applied. Mr. Brown clarified for the record that his personal business company (Clerk's note: Ameri-Tech HVAC Services) is not associated with Ameri-Tech Equipment of Casper. Motion carried. Voting “yes” – all members of the governing body.

[CA] Consideration of Bid #M-3-09 for a contract between Naranjo Civil Constructors, Inc., and the City of Cheyenne for the Cheyenne Greenway - Safe Routes to School Program, South Park & Johnson-Goins Corridors – referred to Finance Committee.

APPOINTMENTS:

Appointment of Ami Skeens to the Public Transit Advisory Board, and Peter Illoway to the Cheyenne Regional Airport Board. Mr. Collins moved to approve, seconded by Mr. Segrave.

Motion carried. Voting “yes” – all members of the governing body.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Annual leaseholder improvement report submitted by the Airport Golf Club, Inc. Bryan Grzegorzcyk, President of Airport Golf Club, indicated things have been running smoothly at the Club and they have had no problems. Mr. Segrave moved to acknowledge receipt of the annual report, seconded by Mr. Brown. Upon inquiry concerning recent building roof improvements, Mr. Grzegorzcyk advised the City had the roof replaced as it is responsible for improvements outside of the building; the Club takes care of improvements within the building. He reviewed interior areas that had been remodeled or improved within the past year and, upon query concerning effect on the Club’s business due to the No Smoking ordinance, advised pull tab (“pickle”) and drink sales were “down some”, stating that proceeds from pickle sales goes toward Club scholarships. Motion carried. Voting “yes” – all members of the governing body.

Announcement was made of a Public Hearing to be held August 25, 2008 at 6:00 p.m. in City Council Chambers to discuss the submission of an application for grant funding to the Wyoming Business Council under the Business Ready Communities: Community Enhancements Program for funding for continued development of David R. Romero South Cheyenne Community Park.

Announcement was made of a Public Hearing to be held August 25, 2008 at 6:00 p.m. in City Council Chambers for a restaurant liquor license application filed with the City Clerk's Office for Primos Cheyenne d/b/a Scotty's Pizza Factory, 1802 Dell Range, Cheyenne, WY.

OTHER CITY BUSINESS:

Resident John Fafoutakis discussed the completion time frame for the new roadway located by the main Post Office (off Converse) and its benefits to traffic flow in the area; suggested clean-up efforts be conducted in the drainage ditches at the Rue Terre/Dell Range intersection; encouraged placement of more plastic recycling bins in the south Cheyenne area; questioned clean-up and costs of recent flooding that occurred at the Civic Center, and expressed his displeasure with a recent letter to the editor published in the newspaper written by a City Council member involving another Council member relative to the upcoming primary election. With regard to more plastic recycling bins, Mayor Spiker noted that the Director of Solid Waste has not yet been successful in locating any business owners in the south Cheyenne area who were interested in having bins on their property. He also reviewed the City’s property insurance coverage generally with regard to the Civic Center flooding and advised alternate options for managing drainage near the facility are being researched to hopefully alleviate future re-occurrences.

Resident Jennifer Price discussed an issue involving herself and a neighbor pursuant to dog barking and disturbance of the peace, and suggested City Code be changed to support dog owners. Upon inquiry, City Attorney Claudia Angelos confirmed a former mediation program, implemented through the City Attorney’s office a few years ago, was no longer available as they were unable to find individuals to provide mediation services at no cost. Comment was made in support of a

mediation program. Mayor Spiker suggested Ms. Price visit with Police Chief Fecht, who was in attendance, regarding some of her concerns.

Miscellaneous comments by City Council members included: Civic Center insurance coverage; recent increase in sanitation tipping fees at the landfill relative to notification efforts to businesses providing sanitation pick-up services to County residents; appreciation to staff for efforts spent in Civic Center clean-up of flood waters and mitigation attempts to alleviate damage; suggestion that the Board of Public Utilities consider locating its new administration/engineering building within the downtown area instead of 24th St. (and Snyder), and announcement of the availability of free counseling services for certain military veterans and families provided by Peak Wellness Center.

There being no further business to come before the governing body, the meeting was officially adjourned at 10:41 p.m.

Submitted by,

Carol A. Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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